



OptiMind
Educational Strategies

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Pre-Employment Screening

How OptiMind screens a candidate before day one — what gets checked and why, the order it happens in, the Maryland specifics, and every letter and form the sequence needs.

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01

Why this scope

The screening is sized to the role, not to a generic template. Two facts about this job set it.

The EF specialist will be **alone on video with a minor**, on a recurring weekly basis, without a parent necessarily in the room. She will also hold the most sensitive file the business keeps — **neuropsychological reports, IEPs and 504 plans, and grades** — for a caseload she did not originate.

That combination is what justifies screening at all, and it is also what bounds it. The checks below exist to answer two questions: is there a record that bears on unsupervised work with children, and is this person who and what she says she is. Anything that doesn't answer one of those is out.

IN SCOPE

Identity, criminal history, registry, credentials

Identity and SSN trace, county-level criminal searches across the address history, the national sex offender registry, and verification of employment, education and any coaching credential claimed.

DELIBERATELY OUT

Credit, driving, social media

Credit history — Maryland restricts its use in hiring and there is no defensible reason for it in this role. **Motor vehicle records** — nobody drives for OptiMind. **Social media screening** — high discrimination exposure, low signal, and Maryland bars asking for account credentials.

TWO THINGS YOU CANNOT GET, SO DON'T SPEND TIME LOOKING

The **FBI fingerprint-based check** and the **Maryland CPS child abuse and neglect registry check** are both gated to licensed child care, schools, foster care and similar regulated settings. A private tutoring LLC has no statutory hook for either. Maryland CJIS does offer a "private party petition" route to *state-only* records by fingerprint, but for a virtual practice hiring outside the immediate area it is slower and narrower than a good county-level search. The commercial package plus the registry search is the realistic ceiling — and it is a reasonable one.

02 What gets checked

Order this as one package from one vendor, then run the human half yourself.

CHECK	WHAT IT ANSWERS	WHO RUNS IT
Identity & SSN trace	Confirms the name and address history that every other search runs against. Without it the criminal searches may be looking in the wrong counties under the wrong name.	Vendor
County criminal — every county in the 7-year address history	The only search that reads actual court records. This is the substantive one.	Vendor
National criminal database	A pointer, not a finding. Useful for surfacing counties outside the declared address history, which then get searched directly. Never act on a database hit alone.	Vendor
National sex offender registry	Non-negotiable for this role. Cheap, fast, and the one result that ends a hiring conversation outright.	Vendor
Employment verification — last two positions	Dates, title, and whether the claimed caseload is real. Also the natural moment to confirm the non-solicit question already sitting in the backlog.	Vendor
Education / credential verification	The degree and any EF or coaching certification claimed. For this role this is arguably higher-value than the criminal search — it is the item people actually inflate.	Vendor
Two reference calls	Judgement, documentation discipline, and conduct in unsupervised work with children. A form cannot ask these questions; a person can. Script in Template E .	You

THE ONE THING TO INSIST ON

Do not accept a package whose only criminal component is a "national database" search. Database products are aggregated, incomplete, and frequently stale. **County-level searches across the full address history** are what a defensible check looks like, and they are the reason to buy the middle tier rather than the cheapest one.

03 The sequence

Order matters here in a way it doesn't in most SOPs — the Fair Credit Reporting Act attaches specific obligations to specific moments, and doing the right thing at the wrong point is still a violation. Follow the steps as numbered.

STEP 01**INTERVIEW STAGE****Interview first, screen later**

Do not raise criminal history on the application form or in the first conversation. Maryland's ban-the-box law formally binds employers with fifteen or more full-time employees in the state — so it does not reach OptiMind today, and businesses providing direct care to minors are exempt from it in any case. Build the habit anyway: it costs nothing now and is already correct for hires two and three.

Do mention, near the end of a promising interview, that the role is subject to a background check before start. Nobody legitimate is surprised by this in a role working with children.

STEP 02**DECISION MADE****Make the offer conditional, in writing**

The offer letter states that employment is contingent on satisfactory completion of a background check and on signing the data-handling policy. Making it explicitly conditional is what lets you withdraw cleanly if something surfaces, and it is far easier than unwinding an unconditional offer.

STEP 03**SAME DAY****Give the standalone disclosure**

Send [Template A](#) as its **own document** — its own page, its own file, nothing else on it. This is the single most-litigated requirement in the whole process: the disclosure must consist solely of the disclosure. Folding it into the offer letter, the application, or a block of onboarding paperwork is the classic and expensive mistake.

STEP 04**BEFORE ORDERING****Collect written authorization**

[Template B](#), signed and dated, as a separate document from the disclosure. Keep identifiers — date of birth, Social Security number, full address history — out of this form and collect them through the vendor's own secure candidate portal instead. The candidate types them in; they never sit in your inbox.

STEP 05**DAY 0****Order the check; start the human half in parallel**

Place the order the same day authorization comes back. While it runs — typically two to five business days — make the two reference calls yourself using [Template E](#). Don't wait for the report; these are independent, and the reference calls are more likely to change your mind than the report is.

STEP 06

REPORT CLEAN

Confirm the start date and file the paperwork

Nothing further is required. Confirm the start in writing, and file the signed disclosure, authorization and report per the retention rule at the end of this section. This is the outcome in the large majority of cases — steps 7 through 9 exist for the exception.

STEP 07

IF SOMETHING SURFACES

Assess it individually before deciding anything

A record is not automatically disqualifying, and a blanket rule against hiring anyone with any record creates real discrimination exposure. Weigh three things, in writing, in three or four sentences you keep on file:

- **The nature and gravity** of the offence.
- **The time elapsed** since it and since any sentence completed.
- **The relationship to this job** — unsupervised work with minors and custody of sensitive records.

Something recent and directly relevant is a different matter from a decade-old, unrelated misdemeanour. Also check the report for simple error before assuming it is accurate — mismatched-identity records are common.

STEP 08

BEFORE DECIDING

Send the pre-adverse action packet

If the report might change your decision, the candidate gets three things *before* you decide: [Template C](#), a complete copy of the report, and the current CFPB *Summary of Your Rights Under the Fair Credit Reporting Act* (your vendor supplies it — confirm it is the version mandatory since March 2024, not an older one).

STEP 09

WAIT

Give a reasonable period to respond

The law says "reasonable"; **five business days** is the widely used practice and is what this SOP adopts. The point is real — it lets the candidate correct an error or give context before the decision is final. Do not communicate a decision during this window.

Send the final adverse action notice

[Template D](#). It must name the consumer reporting agency with address and phone, state that the agency did not make the decision and cannot explain it, and tell the candidate they may obtain a free copy of the report within sixty days and dispute its accuracy. Send it even if the candidate never responded to step 8.

RETENTION AND STORAGE

- Background reports are personnel-confidential. They live in a **separate, access-restricted folder** — never in the client-facing Drive structure and never in the shared onboarding folder.
- Keep the signed disclosure, signed authorization, the report, and any individualized-assessment note. Retain for the duration of employment plus three years, then destroy securely.
- Reports on candidates who were *not* hired follow the same rule — they are exactly the records you would need if a decision were ever questioned.

04 Maryland & out-of-state

Three jurisdictional points, one of which is easy to miss.

BAN-THE-BOX

Doesn't bind you — follow it anyway

Maryland's Criminal Record Screening Practices Act applies at **fifteen or more full-time employees in the state**, and separately exempts employers providing programs or direct care to minors. OptiMind clears it twice over. Step 1 of the sequence follows it regardless, because the habit is free and the threshold is not permanent.

CREDIT

Maryland limits credit checks in hiring

The Job Applicant Fairness Act restricts using credit history in employment decisions outside defined exceptions. Since there is no reason to run one for this role, the simplest compliance posture is simply never to order it.

CONFIRM BEFORE YOU ORDER

If the specialist lives outside Maryland, her state's law governs the screening — not yours. For a fully virtual practice this is genuinely easy to overlook. California, New York City, Illinois, New Jersey and others add real obligations: mandatory individualized assessments, longer response windows, restrictions on how far back records may be reported, extra notices. Establish the candidate's state of

residence before placing the order, and tell your vendor — a competent CRA will apply the right state rules automatically, but only if it knows where she is.

05 Choosing the vendor

You need a Fair Credit Reporting Act–compliant consumer reporting agency. Not a people-search site, and emphatically not Google.

What to buy

GoodHire, Checkr and Sterling all serve one-off small-business volume with no minimum. At current published pricing, GoodHire's tiers sit at roughly **\$30** (identity, national criminal, sex offender registry), **\$60** (adds identity verification and unlimited county criminal), and **\$95** (adds state and federal criminal). Verifications are typically priced separately.

The middle tier is the right buy for this role — county criminal is the whole point, and the jump to the top tier adds federal coverage that matters far less here. Budget roughly \$60–\$120 per hire including verifications. Against a role that generates billable hours from week three, this is not a number worth optimising.

Four questions to ask before you sign up

- **Do you run county-level criminal searches across the full address history**, or only a national database? If the answer is vague, move on.
- **Do you provide compliant disclosure and authorization forms, and the current CFPB Summary of Rights?** Most good vendors do. Use theirs if they are current — the templates here are the fallback and the reference.
- **Do you support the adverse action workflow** — pre-adverse notice, the waiting period, the final notice — from inside the platform? This is the part that is easiest to get wrong by hand.
- **Do you apply state-specific rules automatically** based on the candidate's location? Critical given the out-of-state flag above.

DONE WHEN

- An account exists with one CRA and the four questions above are answered yes.
- The vendor's own disclosure and authorization forms have been compared against Templates A and B, and one set is chosen as the standard.
- The chosen package includes county criminal and the national sex offender registry.

The forms and letters

Six documents, in the order the sequence uses them. Text in **green** is a field to fill in. Review with an employment attorney once before first use; after that they are reusable as-is.

READ THIS BEFORE USING TEMPLATE A

The disclosure must be its own standalone document. Print or send it on its own page, in its own file. Do not merge it with the authorization, the offer letter, the handbook acknowledgment, or anything else — including a signature line, which is why Template A has none and Template B recites receipt instead.

TEMPLATE A · STANDALONE DISCLOSURE · GIVE ON ITS OWN PAGE

DISCLOSURE REGARDING BACKGROUND INVESTIGATION

OptiMind Educational Strategies, LLC ("the Company") may obtain a consumer report about you for employment purposes.

A consumer report is a background report that may contain information concerning your identity and Social Security number, criminal history, sex offender registry status, employment history, and education and professional credentials.

The report will be prepared by **[CRA legal name]**, **[street address]**, **[phone]**, **[website]**, a consumer reporting agency.

The Company may use the report in deciding whether to offer you employment. Where permitted by law and subject to any further authorization required, the Company may obtain additional reports during your employment.

AUTHORIZATION TO OBTAIN A CONSUMER REPORT

I have received and read the separate document titled *Disclosure Regarding Background Investigation*.

I authorize OptiMind Educational Strategies, LLC and [CRA legal name] to obtain a consumer report about me for employment purposes, as described in that disclosure.

I understand that I will provide the identifying information required to complete the report — including my date of birth, Social Security number and address history — directly to the consumer reporting agency through its secure portal, and not on this form.

I understand that if information in the report may result in an adverse employment decision, I will be given a copy of the report and a summary of my rights under the Fair Credit Reporting Act before any final decision is made.

Printed name _____

Signature _____ Date _____

TEMPLATE F • THE EMAIL THAT CARRIES A AND B

Subject: **Background check — next step for the EF Specialist role**

Hi [name],

Delighted you're joining us. As I mentioned, the offer is contingent on a standard background check — it's routine for anyone working one-to-one with students and holding their educational records, and it's how I protect the families we work with.

Two documents are attached: a disclosure explaining what the check covers, and an authorization form to sign and return. You'll then get a secure link from [CRA name] to enter your details directly — nothing sensitive comes to me by email.

It usually takes two to five business days. Any questions at all, just ask.

Best,
Sarah

PRE-ADVERSE ACTION NOTICE

Dear [name],

Thank you for your interest in the EF Specialist position with OptiMind Educational Strategies, LLC.

We have received a consumer report about you, prepared at our request by [CRA legal name]. **We are considering taking adverse action** — declining to proceed with your employment — based in whole or in part on information in that report. **No final decision has been made.**

Enclosed with this letter are:

- A complete copy of the consumer report we received; and
- A copy of *A Summary of Your Rights Under the Fair Credit Reporting Act*.

Please review the report carefully. If you believe any of the information in it is inaccurate or incomplete, you have the right to dispute it directly with [CRA legal name] at [CRA phone]. You may also contact me if there is context you would like me to consider.

We will take no further action for **five business days** from the date of this letter to give you the opportunity to respond.

Sincerely,

Sarah Ritter

OptiMind Educational Strategies, LLC

[phone / email]

NOTICE OF ADVERSE ACTION

Dear [name],

Further to my letter of [date of Template C], we have decided not to proceed with your employment with OptiMind Educational Strategies, LLC. This decision was based in whole or in part on information contained in a consumer report.

The consumer reporting agency that furnished the report is:

[CRA legal name]

[street address]

[phone — toll-free if available]

[website]

The consumer reporting agency did not make this decision and is unable to provide the specific reasons for it.

You have the right to obtain a free copy of your consumer report from that agency if you request it within **sixty days** of receiving this notice. You also have the right to dispute directly with the agency the accuracy or completeness of any information in the report.

A copy of *A Summary of Your Rights Under the Fair Credit Reporting Act* is enclosed.

Thank you for the time you gave this process.

Sincerely,

Sarah Ritter

OptiMind Educational Strategies, LLC

REFERENCE CALL — EF SPECIALIST

Framing: "I'm considering [name] for a role coaching students one-to-one over video, mostly teenagers with executive-function challenges. She'd be working unsupervised and handling neuropsych reports and IEPs. I'd value your candour."

- How did you work together, and over what period?
- What did her caseload actually look like — how many students, what ages, what kinds of need?
- Did she work with students unsupervised? How did that go?
- How was she with documentation — session notes, records, deadlines? Did anything ever have to be chased?
- How did she handle a parent who was upset or a student who wasn't engaging?
- Was there anything she needed close supervision on?
- **Would you work with her again — and is there anything you'd want to know if you were in my position?**

After the call: three or four lines in the candidate file — who you spoke to, when, and what they said. The last question is where the real answer usually lives; leave a silence after it.

Screening was not a numbered item in the v3 roadmap, and it should have been. It attaches to **Recommendation 4** as a seventh artefact, and it runs in parallel with three things already on the board: the **one-page data-handling policy** from Recommendation 5, which is the document the new hire signs against; the **non-solicit question** sitting in the backlog, which the employment verification call answers for free; and the **role definition**, which is what tells you which verifications are worth ordering.

Practically, those are one task with four outputs, and the whole thing is an afternoon plus a five-day wait — not a project.

DONE WHEN

- A CRA account exists and the package is configured to include county criminal and the sex offender registry.
- Templates A and B — or the vendor's equivalents — have had one attorney review and are saved in the hire folder.
- The candidate's state of residence is confirmed and the vendor knows it.
- The offer letter language makes employment contingent on the check and on signing the data-handling policy.
- A restricted personnel folder exists, separate from the client Drive structure, with the retention rule written at the top.

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Prepared by Ruby Groves for Sarah Ritter / OptiMind Educational Strategies. Confidential — for internal use by OptiMind Educational Strategies only.

This document is process guidance, not legal advice. The templates in Section 06 are drafting starting points and warrant one review by a Maryland employment attorney before first use — particularly the adverse-action letters, and particularly if the successful candidate resides outside Maryland. Vendor names and prices are illustrative of the right category and current as of August 2026; confirm before committing.

Sources: Fair Credit Reporting Act, 15 U.S.C. §1681 et seq.; Maryland Criminal Record Screening Practices Act (Md. Code, Lab. & Empl. §5-601 et seq.) and the Maryland Department of Labor's published FAQs; Maryland Job Applicant Fairness Act; National Child Protection Act, 34 U.S.C. §40102; Maryland DPSCS criminal history record check guidance; CFPB *Summary of Your Rights Under the Fair Credit Reporting Act* (version mandatory from 20 March 2024).